

Administrative Appeal Packet and Final Agency Decision

Appeal Cover

Appeal filed: August 30, 2024 **Request:** DOE-FOIA-2024-OG-041 **Appeal:** DOE-APR-2024-OG-017 **Appellant:** Open Grid Archive

Open Grid Archive appeals the August 16 determination in part. It does not challenge the agreed scope, the exclusion of drafts and incident data, the deduplication of identical copies, the fee decision, or the release of the two governance records. It challenges the adequacy of the explanations for Exemptions 7(E) and 7(F), the decision to withhold three records in full, and the conclusion that no additional portion can be segregated.

The production confirms a twelve-record, 200-page responsive universe. Open Grid received 146 page images: twenty-two pages from records released in full and 124 pages from records released in part. Fifty-four pages were withheld. Seventy-eight produced pages carry blackouts. The appeal accepts those figures as the agency's accounting but does not accept that page-level notation alone proves an exemption.

The requested remedy is a fresh review, a more specific record-by-record explanation, and release of administrative or descriptive text that can stand independently. Open Grid does not request disclosure of any actual credential, live technical setting, real facility, or incident information.

Appeal Ground Concerning 7(E)

Open Grid acknowledges that an approved operational decision tree may contain nonpublic implementation detail. The appeal instead argues that the determination moves too quickly from a general law-enforcement purpose to full withholding. It does not distinguish every asserted technique or procedure from a guideline, and it does not explain why titles, legends, revision notes, and nonoperational instructions would reveal a protected sequence.

For guideline material, Open Grid asks the appeal office to determine whether the agency connected disclosure to a reasonable risk of circumvention. The letter refers to fictional thresholds and branches without identifying which record contains a threshold, which contains a procedure, or which general passages remain outside that concern. A record-specific explanation can be supplied without revealing the withheld content.

The appeal is narrower than a demand for operational detail. Open Grid accepts continued withholding of any genuinely nonpublic trigger order or implementation sequence if the agency meets its burden. It seeks separation of those details from public-facing statements of purpose, document-control fields, approval blocks, and ordinary administrative prose. The two fully released governance records demonstrate that version history can be understood without disclosing the decision logic itself.

Appeal Ground Concerning 7(F)

The initial decision groups duty roles, contacts, safety references, and escalation positions under one 7(F) rationale. Open Grid contends that the group description does not establish how release of every field could reasonably be expected to endanger life or physical safety. No named person is required, but the agency still must articulate an expected causal connection rather than invoke safety as an abstract subject.

The appeal points to produced pages where an administrative role label is redacted alongside an operational field. A role's presence in a response document does not by itself show danger. Similarly, a generic coordination heading may be separable even if a contact channel beneath it is protected. Open Grid asks the appeal office to examine those distinctions rather than affirm the category as a unit.

This ground does not seek a roster, contact value, real location, or sensitive placement. The requested relief can be satisfied through further release of harmless descriptors or a more particular explanation. Open Grid also asks the agency to say which of the fifty-four fully withheld pages rely only on 7(E) and which overlap with 7(F); the August letter provides totals but not a record-level harm analysis.

Appeal Ground Concerning Segregability and Harm

The determination says every page was reviewed but presents its conclusion by category. Open Grid argues that this is insufficient where the produced documents visibly contain separate title blocks, approval histories, tables of contents, and administrative headings. The fact that protected details are interspersed with other text does not answer whether meaningful nonexempt portions can be released after deletion.

The appeal asks for a documented line review of the three fully withheld records and the redacted portions of the seven partial records. It also asks reviewers to separate the foreseeable-harm inquiry from the threshold scope of an exemption. A predicted harm tied to decision logic does not necessarily extend to a revision date; a safety concern tied to a fictional contact value does not necessarily extend to the heading that introduces a coordination section.

Open Grid identifies no defect in the production format. Its concern is the substantive explanation and the absence of a page-linked segregability account. The appeal office may remand for reprocessing, direct release of identified portions, or affirm a withholding that is adequately supported. Open Grid requests a written decision explaining the chosen course.

Agency Appeal Acknowledgment and Record

Date: September 6, 2024

The fictional Office of Public Access Review accepts appeal DOE-APR-2024-OG-017 as timely. Nessa Rill is assigned as the fictional adjudicator. The appeal record consists of the June 3 request, the June clarification exchange, the August 16 decision, production RLS-OG-001, its manifest, the withheld-record descriptions, Open Grid's August 30 submission, and a confidential explanatory statement from the originating component.

The review will address three questions: whether ORER adequately supported 7(E); whether the categorical 7(F) explanation is sufficient; and whether the component released all reasonably segregable material after considering foreseeable harm. Search adequacy is not disputed, although the adjudicator may consider search facts needed to understand the record universe.

ORER reports that the twelve records total 200 pages and that no fee issue remains. It maintains the disposition arithmetic of three fully withheld records, seven partially released records, and two fully released records. It also maintains that duplicate copies were removed before page counting.

The appeal office will not inspect or request real operational information. Its confidential statement uses only the synthetic record descriptions associated with Grid Sentinel. A decision is expected by October 7, 2024. This acknowledgment makes no finding on the merits and does not alter the scope of the original request.

Final Decision: Standard and Record Purpose

Date: October 7, 2024 **Decision reference:** FAD-OG-1007

The appeal office reviews the withholding determinations on the agency record and considers whether the originating component has carried its burden. It accepts the undisputed search history and the final twelve-record universe. The question is not whether the fictional Grid Sentinel label itself is sensitive, but whether the identified content falls within the cited exemptions and whether nonexempt material can be separated.

The decision finds that the playbook records were compiled and used for a law-enforcement purpose. The custodian's confidential statement explains that the approved documents organize prevention and response to unlawful attacks within the synthetic program. A record may serve that purpose even though the agency component also performs administrative functions.

For 7(E), the appeal office credits the distinction between general preparedness concepts and the suite's nonpublic application of conditions, sequence, and branches. It concludes that exposing the latter would disclose techniques or procedures or reveal guidelines in a way that could permit circumvention. The office also concludes that the explanation may be given by functional category without reproducing the protected content. The two governance records were properly treated differently because they contain no operational organization.

Final Decision: 7(F), Harm, and Segregability

The appeal office affirms the 7(F) determination. It concludes that fictional duty-role, contact-channel, safety-reference, and escalation-position fields form a coherent category associated with the protection of people engaged in response functions. The decision does not require ORER to name a threatened individual. It accepts the component's prediction that exposing the categories could increase interference or direct attention toward safety-related functions.

The office also accepts the component's foreseeable-harm analysis. It reasons that the predicted harms correspond to the interests underlying 7(E) and 7(F), and that more detailed public explanation might itself reveal the relationship among protected fields. The office does not separately trace each predicted harm to each record entry.

On segregability, the decision credits ORER's statement that reviewers examined every responsive page. It finds that full withholding was permissible where protected conditions and sequence were integrated throughout a record. It further finds that the production of 146 page images, including visible titles and administrative fields, demonstrates an effort to release nonexempt content. Although Open Grid identifies examples of headings it believes could be disclosed, the appeal office does not order a new line-by-line chart or additional release.

Disposition and Notice

Appeal DOE-APR-2024-OG-017 is denied, and the August 16 determination is affirmed. The decision sustains 7(E) withholding for nonpublic decision conditions, implementation order, and related branches. It sustains the agency's categorical 7(F) treatment of the specified role, contact, safety, and escalation fields. It also sustains the finding that no further reasonably segregable material was identified in the completed review.

The decision leaves the record arithmetic unchanged: twelve responsive records and 200 source pages; fifty-four pages within three records withheld in full; 124 pages within seven records released with redactions; and twenty-two pages within two records released in full. Production RLS-OG-001 remains the operative response. No fee is due.

This is the fictional agency's final action on the administrative appeal. Open Grid may seek judicial review under 5 U.S.C. § 552 in an appropriate federal district court. The notice expresses no view about venue, jurisdictional allegations, or the merits of any future complaint.

Nessa Rill Fictional Administrative-Appeal Adjudicator

The appeal packet is certified complete as of October 7, 2024. Its synthetic identifiers do not correspond to a real agency matter, and its abstract descriptions provide no operational cyber instruction.